

Criminal Law I | Transitioning from IPC to BNS

CHAPTER XX OFFENCES RELATING TO MARRIAGE

IPC 493-498 | BNS 81-84 | Constitutional status of IPC 497

This rewritten Chapter XX contains the supplied text of IPC Sections 493-498, including the complete Section 494 exception and the historical wording of Section 497, followed by section-specific explanations and BNS mappings. It distinguishes deceitful cohabitation, bigamy, concealment of a prior marriage, a fraudulent ceremony, the invalidated adultery offence, and taking, enticing, concealing or detaining a married woman with criminal intent. Study notes, revision questions and the indexed PDF use the same chapter data.

Study edition: 6 October 2026. Course position 22. Six IPC entries, five correspondences and eight self-check questions. Includes the supplied IPC provisions in full, with separate legal-status notes and study explanations.

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Objectives and transition

- Identify all six IPC entries and the relevant BNS section or constitutional status.
- Read the supplied statutory wording, including both branches of the Section 494 exception and the historical penalty under Section 497.
- Distinguish belief in an existing lawful marriage from a promise of future marriage.
- Apply the elements of bigamy, concealment and the statutory exceptions.
- Distinguish a knowingly fraudulent ceremony from a merely invalid marriage.
- Explain Joseph Shine and the absence of a BNS adultery counterpart.
- Analyse BNS 84 using its act, knowledge and intent requirements.

The relevant BNS provisions commenced on 1 July 2024. Select the substantive law by the date and nature of conduct, BNS 358 repeal-and-savings rules and Article 20(1) of the Constitution; complaint timing alone does not decide the applicable offence or penalty. These marriage offences are reorganised within BNS Chapter V, concerning offences against women and children. IPC Chapter XX is retained as the course heading. IPC 497 was already struck down in 2018: do not confuse constitutional invalidation with the later general repeal of IPC. This chapter ends at IPC 498; cruelty under IPC 498A belongs to the separate Chapter XXA.

IPC-to-BNS comparison

Read each supplied IPC provision first, then the legal-status note, BNS mapping and explanation. IPC 493 corresponds to BNS 81; 494 to 82(1); 495 to 82(2); 496 to 83; and 498 to 84. IPC 497 is reproduced only for historical study: it was struck down, and the BNS has no adultery counterpart. The Section 494 exception is reproduced in full; its alternatives and conditions must not be reduced to seven-year absence alone.

IPC 493. Cohabitation caused by a man deceitfully inducing a belief of lawful marriage

Historical IPC text supplied for study; identify the conduct date and apply the corresponding BNS provision where applicable.

Supplied IPC text

Every man who by deceit causes any woman who is not lawfully married to him to believe that she is lawfully married to him and to cohabit or have sexual intercourse with him in that belief, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

BNS reference: 81

Study explanation

IPC 493 and BNS 81 require a man's deceit, a woman not lawfully married to him, belief that she is lawfully married to him, and cohabitation or sexual intercourse caused by that belief. Explain the causal chain from deceit to belief to conduct. A promise to marry in the future differs from a representation that a lawful marriage already exists. Both provisions provide imprisonment of either description up to ten years and liability to fine.

IPC 494. Marrying again during lifetime of husband or wife

Historical IPC text supplied for study; identify the conduct date and apply the corresponding BNS provision where applicable.

Supplied IPC text

Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Exception.—This section does not extend to any person whose marriage with such husband or wife has been declared void by a Court of competent jurisdiction,

nor to any person who contracts a marriage during the life of a former husband or wife, if such husband or wife, at the time of the subsequent marriage, shall have been continually absent from such person for the space of seven years, and shall not have been heard of by such person as being alive within that time provided the person contracting such subsequent marriage shall, before such marriage takes place, inform the person with whom such marriage is contracted of the real state of facts so far as the same are within his or her knowledge.

BNS reference: 82(1)

Study explanation

The accused must have a living husband or wife and contract a further marriage that is void because it occurs during that spouse's lifetime. Establish the first marriage, its subsistence and the subsequent marriage under the applicable marriage law. Cohabitation or a bare allegation of marriage does not replace the required proof. Punishment: imprisonment of either description up to seven years and liability to fine. The exception covers a former marriage declared void by a competent court, or a spouse continuously absent for seven years and not heard of as alive during that time, provided the known real facts are disclosed to the new spouse before the subsequent marriage. Mere separation or a pending divorce petition is not itself a dissolution.

IPC 495. Same offence with concealment of former marriage from person with whom subsequent marriage is contracted

Historical IPC text supplied for study; identify the conduct date and apply the corresponding BNS provision where applicable.

Supplied IPC text

Whoever commits the offence defined in the last preceding section having concealed from the person with whom the subsequent marriage is contracted, the fact of the former marriage, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

BNS reference: 82(2)

Study explanation

IPC 495 depends on the offence in IPC 494: first establish bigamy, then prove concealment of the former marriage from the person entering the subsequent marriage. BNS 82(2) consolidates this aggravated offence. The maximum is ten years' imprisonment of either description, with liability to fine. Disclosure avoids the concealment element but does not by itself validate an otherwise prohibited second marriage or remove the underlying bigamy offence.

IPC 496. Marriage ceremony fraudulently gone through without lawful marriage

Historical IPC text supplied for study; identify the conduct date and apply the corresponding BNS provision where applicable.

Supplied IPC text

Whoever, dishonestly or with a fraudulent intention, goes through the ceremony of being married, knowing that he is not thereby lawfully married, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

BNS reference: 83

Study explanation

IPC 496 and BNS 83 focus on going through a marriage ceremony dishonestly or with fraudulent intention, knowing that lawful marriage does not result. Prove both the ceremony and the specified knowledge and mental element. A ceremony that is invalid through an honest mistake is not automatically criminal under this provision. Unlike IPC 493, induced cohabitation or intercourse is not a stated ingredient. The maximum is seven years' imprisonment of either description and liability to fine.

IPC 497. Adultery

Historical text only — IPC 497 was struck down as unconstitutional in Joseph Shine v. Union of India on 27 September 2018. Its former punishment is not enforceable; there is no BNS adultery counterpart.

Supplied IPC text

Whoever has sexual intercourse with a person who is and whom he knows or has reason to believe to be the wife of another man, without the consent or connivance of that man, such sexual intercourse not amounting to the offence of rape, is guilty of the offence of adultery, and shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both. In such case the wife shall not be punishable as an abettor.

BNS reference: No BNS counterpart - unconstitutional IPC provision

Study explanation

The Supreme Court in Joseph Shine v. Union of India, decided on 27 September 2018, struck down IPC 497 as unconstitutional. The judgment also invalidated the related CrPC 198 rule to the extent it concerned prosecution for adultery. Do not present the former IPC penalty as an enforceable criminal punishment. BNS contains no corresponding adultery offence. Adultery may still have matrimonial consequences under the applicable law; decriminalisation does not decide every civil or service-law question. It does not remove the ingredients of separate offences involving deceit, coercion or bigamy.

IPC 498. Enticing or taking away or detaining with criminal intent a married woman

Historical IPC text supplied for study; identify the conduct date and apply the corresponding BNS provision where applicable.

Supplied IPC text

Whoever takes or entices away any woman who is and whom he knows or has reason to believe to be the wife of any other man, from that man, or from any person having the care of her on behalf of that man, with intent that she may have illicit intercourse with any person, or conceals or detains with that intent any such woman, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

BNS reference: 84

Study explanation

BNS 84 covers taking or enticing away a woman known or reasonably believed to be another man's wife with intent that she have illicit intercourse with any person, and concealing or detaining such a woman with that intent. Prove the relevant act, marital-status knowledge or reason to believe, and specified intent. Unlike IPC 498, the BNS text does not retain the express words requiring taking or enticing from the husband or a person having care of her on his behalf. Punishment: imprisonment of either description up to two years, or fine, or both. This is not a replacement adultery offence: suspicion of a relationship does not alone prove every element. Assess the woman's autonomy and the actual conduct without treating her as property.

Ingredients and practical application

Deceit and belief (81): identify the representation that a lawful marriage already exists, its falsity, the resulting belief and cohabitation or intercourse in that belief. An unfulfilled future promise requires a different analysis and must not be mechanically labelled an offence under 81.

Bigamy (82): establish a valid subsisting first marriage and the subsequent marriage in the legally required manner. Identify why the latter is void owing to the living spouse. Check competent-court orders, dates and the applicable marriage law rather than assuming every second relationship is a second marriage.

First exception — court-declared nullity: identify a competent court's declaration that the former marriage is void. A separation or pending petition is not that declaration. Do not confuse this branch with the separate absence branch.

Second exception — seven-year absence: continuous absence, no news of being alive during that period, and disclosure of the known facts to the new spouse before marriage must be considered together. Mere non-contact for a short period is insufficient. Do not treat this exception as a general licence based only on a missing-person report.

Fraudulent ceremony (83): an unlawful result alone is insufficient. The section expressly requires a ceremony, knowledge that lawful marriage does not result, and dishonesty or fraudulent intention.

Constitutional distinction: Joseph Shine protects equality, dignity and sexual autonomy against the former adultery offence. Matrimonial relief and independently proved criminal offences are different questions. BNS 84 must be assessed on its own words, not used to assume criminality merely because a married woman forms a relationship.

Evidence for a problem answer: identify the applicable marriage law, proof of required ceremonies or formalities, any dissolution or nullity order, disclosure or concealment, communications explaining the alleged deceit and the conduct alleged. These are analytical prompts, not a substitute for the statutory burden of proof.

Revision and exam method

- IPC 493 -> BNS 81: deceit causing belief in an existing lawful marriage and resulting cohabitation or intercourse.
- IPC 494 -> BNS 82(1): bigamy; maximum seven years and fine, subject to the statutory exception.
- IPC 495 -> BNS 82(2): underlying bigamy plus concealment; maximum ten years and fine.
- IPC 496 -> BNS 83: knowingly fraudulent or dishonest marriage ceremony; maximum seven years and fine.
- IPC 497: struck down in Joseph Shine on 27 September 2018; no BNS adultery counterpart.
- IPC 498 -> BNS 84: specified taking, enticing, concealment or detention with the statutory knowledge and intent; maximum two years or fine or both.
- IPC 494 exception: competent-court declaration of nullity, OR continuous seven-year absence with no news of being alive and pre-marriage disclosure of known facts.
- Disclosure alone does not validate a prohibited second marriage; apply the complete exception.
- A failed marriage, relationship or promise is not automatically proof of a criminal offence.

Start with the conduct date and applicable statute. Identify the precise representation, marriage, ceremony or taking/enticing/concealment/detention. Prove every required mental element and causal link. For bigamy, establish both marriages under the applicable law and test the statutory exception. For adultery, state the constitutional holding and absence of a BNS counterpart rather than reproducing the former offence as current law. End with the correct subsection and punishment.

Practice questions and model answers

Self-check study exercises; not a timed or graded assessment.

1. A man deceitfully induces a woman to believe they are already lawfully married, and she cohabits with him in that belief. Which provision applies?

Model answer: Analyse BNS 81 (formerly IPC 493). Prove deceit, absence of lawful marriage, the induced belief and cohabitation or intercourse in that belief. The maximum imprisonment is ten years with liability to fine.

2. Does living together with a second partner automatically prove bigamy?

Model answer: No. BNS 82(1) requires a subsequent marriage void because of a living spouse. Establish the subsisting first marriage and legally relevant proof of the second under the applicable marriage law.

3. What are the two branches of the IPC 494 / BNS 82(1) exception?

Model answer: One concerns a former marriage declared void by a competent court. The other requires continuous absence of the former spouse for seven years, no hearing of that spouse as alive during that time, and disclosure of the known real facts to the new spouse before the subsequent marriage. Test each branch on its own conditions.

4. What does concealment add under BNS 82(2)?

Model answer: It aggravates an established offence under 82(1) where the former marriage is concealed from the new spouse. The maximum rises from seven to ten years, with liability to fine. Concealment does not replace proof of the underlying offence.

5. An invalid ceremony occurred through an honest misunderstanding. Is BNS 83 automatically established?

Model answer: No. The statutory knowledge and dishonest or fraudulent intention must be proved. Invalidity by itself is insufficient.

6. Can IPC 497 be treated as an operative offence with a new BNS number?

Model answer: No. Joseph Shine struck it down in 2018, and BNS contains no adultery counterpart. Separate matrimonial consequences or other offences require their own legal analysis.

7. How does BNS 84 differ from simply alleging an adulterous relationship?

Model answer: It requires a specified act of taking, enticing, concealing or detaining, the required knowledge or reason to believe about marriage, and the stated intent. An allegation of a relationship alone is not proof of all those elements.

8. Is a promise to marry next year the same as deceit that a lawful marriage already exists?

Model answer: No. BNS 81 concerns belief in an existing lawful marriage followed by cohabitation or intercourse in that belief. Other allegations require independent analysis under any separately applicable provision.

Official sources

BNS 2023 - official Gazette, Sections 81-84 (printed pages 28-29)

[Open official source](#)

Historical IPC - Chapter XX, Sections 493-498

[Open official source](#)

Joseph Shine v. Union of India, 27 September 2018, [2018] 11 SCR 765 - official court-hosted judgment

[Open official source](#)

BNS commencement notification S.O. 850(E), 23 February 2024

[Open official source](#)

Read the full applicable statutory text for a live matter. The invalidation of IPC 497 is distinct from the 2024 IPC repeal-and-savings framework. The examples are teaching illustrations, not reported judgments.